

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/01/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005468

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MICAELLA CRISTINA
CAPELLI

vs.

DEFENDANT: MARIN HEALTH, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) DEMURRER – TO PLAINTIFF’S FIRST AMENDED COMPLAINT FOR DAMAGES

RULING

Defendants Marin General Hospital’s (“Marin Health”) and Sonoma Valley Hospital Foundation’s (“SVH”; together with Marin Health, “Defendants”) demurrers are SUSTAINED with leave to amend as to Plaintiff Micaella Cristina Capelli’s (“Plaintiff”) First (medical malpractice), Third (negligent infliction of emotional distress, “NIED”), and Fourth (intentional infliction of emotional distress, “IIED”) Causes of Action. (Code Civ. Proc., § 430.10, subd. (e); see *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135 [as modified].)

BACKGROUND

This is a medical malpractice action. Plaintiff alleges that she is a resident of Italy and visited the Bay Area on business in September 2024. (FAC, ¶ 3.) During her trip, she began to experience concerning symptoms she alleges are consistent with venous thromboembolism. (*Id.* at ¶ 9.) She sought urgent medical care at Marin Health’s facility. (*Id.* at ¶ 10.) She alleges that despite reporting “redflag [sic] indicators,” she was given a “ cursory assessment.” (*Id.* at ¶ 11.) According to the FAC, Marin Health’s physician ordered Plaintiff an ultrasound, which came back negative. The physician “did not appreciate that a negative or inconclusive ultrasound does not rule out evolving or proximal DVT, particularly in a symptomatic patient.” (*Ibid.*) Plaintiff was discharged with instructions to take pain medication and elevate her leg. (*Id.* at ¶ 12.) She was not given anticoagulants, specialist consultation, or further imaging, nor was she warned of the signs of pulmonary embolism. (*Ibid.*)

When Plaintiff’s condition worsened, she sought medical care again, this time at SVH’s emergency department. (*Id.* at ¶ 13.) She alleges that she reported “worsening unilateral leg swelling, pain, and functional impairment.” (*Id.* at ¶ 14.) SVH personnel ordered her a CT scan, but it was “not completed due to equipment limitations and operational failures within the hospital.” (*Ibid.*) Instead of transferring Plaintiff to a facility “with functioning imaging

equipment[,]” SVH “discharged Plaintiff without completing diagnostic workup, without arranging urgent follow up [sic], and without ensuring continuity of care.” (*Id.* at ¶ 15.) Thereafter, Plaintiff’s “untreated DVT progressed into pulmonary embolism.” (*Id.* at ¶ 17.) She alleges that this placed her at a substantial risk of death. (*Ibid.*)

Plaintiff asserts claims for medical malpractice, negligence, NIED, and IIED. She filed her original complaint on February 21, 2025. Marin Health and SVH demurred to that pleading. The Court sustained both demurrers with leave to amend as to Plaintiff’s Second (negligence), Third (NIED), and Fourth (IIED) causes of action. (See Jan. 26, 2026 Order.) It sustained both demurrers without leave to amend as to the Fifth Cause of Action (“Punitive Damages”).

Plaintiff filed the FAC on February 12, 2026. The Court now considers Marin Health’s and SVH’s demurrers to that pleading.

LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568.) A complaint must be liberally construed and all reasonable inferences must be drawn in favor of its allegations. (*Teva Pharmaceuticals USA, Inc. v. Superior Court* (2013) 217 Cal.App.4th 96, 102; see also Code Civ. Proc., § 452.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.)

DISCUSSION

Marin Health’s Demurrer¹

Duplicative Causes of Action

¹ The Court exercises its “broad discretion” to consider Plaintiff’s untimely opposition to this demurrer. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.). Plaintiff’s opposition violates the applicable 15-page limit. (Cal. Rules of Court, rule 3.113(d).) Plaintiff is admonished to follow all applicable rules of court moving forward.

Marin Health argues that Plaintiff's causes of action for medical malpractice, negligence, and NIED are duplicative of each other and need to be either consolidated into a single claim or dismissed. Courts have sustained demurrers on the ground that when compared to another cause of action pleaded, the claim subject to demurrer reflects "merely duplicative pleading which adds nothing to the complaint by way of fact or theory." (*Award Metals, supra*, 228 Cal.App.3d 1128, 1135; accord *Palm Spring Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290; *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501.)

In *Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, the Supreme Court made clear that a claim for medical malpractice (or other professional negligence) and a claim for "ordinary" negligence are causes of action for the same tort: negligence. (8 Cal.4th 992, 995, 998.) These are not conceptually distinct theories of liability, even though the standard of care applicable to each is described differently. (*Id.* at pp. 997-998.) The legal theory underlying Plaintiff's First Cause of Action (medical malpractice) and Second Cause of Action ("operational" negligence) is the same: negligence. Thus, these claims are duplicative unless they are based, at least in part, on different facts.

In connection with her medical malpractice claim, Plaintiff alleges that Defendants breached their duty by "[f]ailing to adequately assess [her] clinical presentation," "[i]mproperly relying on a single, inconclusive diagnostic test to rule out a life-threatening condition[.]" "[f]ailing to order appropriate follow up [sic] imaging or laboratory testing[.]" and "[f]ailing to consult specialists or transfer Plaintiff to a higher level of care[.]" (FAC, ¶ 20.) The Court does not see how any of these meaningfully differ from the allegation that Defendants breached their duty by "[d]ischarging Plaintiff despite known diagnostic gaps and foreseeable risk of catastrophic harm[.]" an allegation offered in connection with Plaintiff's other negligence claim. (*Id.* at ¶ 24(d).) All of these amount to allegations that Defendants neglected to perform a thorough medical assessment on Plaintiff and sent her on her way. That this allegation is set forth in different language in connection with each of these two causes of action does not change its character.

Plaintiff alleges only one other breach in connection with her medical malpractice claim: Defendants allegedly breached their duty by "[d]ischarging Plaintiff without warning her of the signs and dangers of pulmonary embolism." (FAC, ¶ 20(e).) Again, the Court does not see how this is meaningfully different from the allegation, offered in connection with the other negligence claim, that Defendants breached their duty by "[f]ailing to ensure that foreign patients were adequately informed and safely discharged[.]" (*Id.* at ¶ 24(c).) Plaintiff does not have standing to seek legal redress for injuries suffered by other "foreign patients[.]" so she can only be alleging that Defendants failed to "adequately inform[] and safely discharge[]" *her*, which is not different from the allegation that they discharged her without warning her of a dangerous risk.

The medical malpractice claim is based on the same legal theory (negligence) as the other negligence claim, and all of the factual allegations specific to this cause of action find a counterpart in the allegations specific to the Second Cause of Action. Accordingly, the First Cause of Action "adds nothing to the complaint by way of fact or theory." (*Award Metals, supra*, 228 Cal.App.3d 1128, 1135.) Marin Health's demurrer to the First Cause of Action is SUSTAINED with leave to amend.

NIED is a species of liability for negligence wherein the alleged injury consists of emotional distress. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 205; *Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129; *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 884.) When a plaintiff pleads an NIED claim based on the same conduct asserted as the basis for a separate negligence claim, the NIED claim is redundant, because the only function of the NIED claim under those circumstances is to assert that the harm the plaintiff has suffered as a result of the defendant's conduct includes emotional harm. This would be like a plaintiff pleading a claim for battery based on the defendant's punching them in the face and breaking their nose, and then pleading a *separate* claim for battery, based on the same punching incident, but this time alleging harm consisting of damage to the teeth and jaw. A plaintiff may suffer multiple different harms as a result of certain tortious conduct, but that does not mean the plaintiff has more than one cause of action.

As pleaded in the FAC, the alleged breaches of duty underlying Plaintiff's NIED claim ("negligent discharge, abandonment of care, [] failure to communicate critical medical risks[,] . . . "dismissing Plaintiff's escalating symptoms, abandoning her care mididiagnostic [sic] process, and discharging her without explanation or safeguards" [FAC, ¶¶ 28-29]) are all already captured within each of her first two causes of action. As the Court said when it addressed this issue on the first demurrer in this case, "[t]hat [Plaintiff's] alleged injury consists in part of emotional distress does not mean it provides a basis for a separate cause of action." (Jan. 26, 2026 Order, p. 4.) The demurrer is sustained with leave to amend as to the NIED claim.

Fourth Cause of Action: IIED

To plead IIED, a plaintiff must plead (1) extreme and outrageous conduct by the defendant, (2) intent to cause emotional distress or reckless disregard of the risk of causing the same, (3) severe emotional distress, and (4) causation. (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494.) To qualify as "extreme and outrageous," the conduct must be "so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." (*Id.*, p. 496 [quoting Rest.2d Torts, § 46, com. d, p. 73].) "Liability for intentional infliction of emotional distress 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.'" (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051 [quoting *Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1122 (overruled on another ground by *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853, fn. 19)].) That allegations are insufficiently extreme and outrageous as a matter of law is a proper ground on which to sustain a demurrer. (*Cochran, supra*, 65 Cal.App.4th 488, 494.)

The Court sustained the original complaint's IIED claim upon finding that it alleged a "garden-variety claim for medical malpractice" and did not allege conduct sufficiently "extreme and outrageous" to support IIED liability. (Jan. 26, 2026 Order, p. 5.) The allegations Plaintiff makes in connection with the FAC's IIED claim are simply more rhetorically colorful recitations of the same facts that support her other causes of action. Those facts still do not rise to the level of "extreme and outrageous conduct" as a matter of law. The demurrer is SUSTAINED as to this cause of action with leave to amend.

Uncertainty

“[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) “[E]ven where a complaint is in some respects uncertain, . . . ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

SVH argues that the FAC is uncertain because it does not sufficiently distinguish the conduct attributable to SVH from that attributable to Marin Health, instead lumping these defendants together. The content under the subheadings for each cause of action does often attribute conduct to “Defendants.” However, the allegations under the “General Allegations” subheading distinguishes between the two defendants and tells SVH what Plaintiff is alleging as to that entity specifically. (FAC, ¶¶ 14-15; see also ¶ 36 [SVH-specific allegations in connection with IIED claim].) The FAC is not a model of precision, but it is so not incomprehensible that SVH is powerless to understand the allegations against it and further clarify them through discovery.

Duplicative Causes of Action

Like Marin Health, SVH contends² that the first three causes of action are duplicative. Everything the Court said about how all of the allegations supporting the medical malpractice claim are offered in connection with the other negligence claim applies to SVH as well, and SVH’s demurrer to the medical malpractice claim is SUSTAINED with leave to amend. Likewise, for the same reasons discussed in its ruling on Marin Health’s demurrer, the Court holds that the NIED claim is duplicative. SVH’s demurrer to the NIED claim is SUSTAINED with leave to amend.

Fourth Cause of Action: IIED

SVH’s demurrer to the IIED claim is SUSTAINED with leave to amend for the reasons described above in connection with Marin Health’s demurrer to the same claim.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcnpkxzJjjEOSHnZEGafG.1>

² SVH’s discussion of the Medical Injury Compensation and Reform Act (MICRA) appears to be a non sequitur. If SVH is arguing that MICRA means one of Plaintiff’s causes of action fails to state a claim and so is subject to demurrer, it does not explain how or why.

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/01/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0007202

PRESIDING: HON. SHEILA S. LICHTBLAU

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PLAINTIFF: ERICK CHATEL, ET AL	
vs.	
DEFENDANT: SHELLY JEAN GAYNER	

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant Shelly Jean Gayner's demurrer is overruled.

Procedural Deficiency

While Defendant's counsel states in his declaration that he met and conferred prior to filing the demurrer, his declaration reflects that no meet and confer efforts were conducted "in person, by telephone, or by video conference" as required by Code of Civil Procedure Section 430.41(a)(3). The demurrer will not be overruled on this basis. (Code Civ. Proc. § 430.41(a)(4).) The Court nevertheless reminds Defendant to follow all applicable rules when filing matters with the court.

Allegations in Plaintiff's Complaint

Plaintiffs Erick Chatel aka Erick Scarecrow ("Chatel") and ESC-Toy Ltd. ("ESC") allege that Chatel is the founder, CEO and sole shareholder of ESC, a creator, designer and manufacturer of games and collectable merchandise licensed from major video game owners and vendors including titles associated with Sony Interactive Entertainment LLC ("SIE"). Defendant Shelly Jean Gayner was formerly employed by SIE as an in-house attorney and served as SIE's Director of Licensing. On information and belief, Defendant signed a nondisclosure agreement with SIE in 1998 which precluded her from disclosing or using confidential SIE information during and after her employment with SIE, but she did not disclose this agreement when working with Plaintiffs or their counsel. While employed with SIE, Gayner worked with Plaintiffs regarding the licensing of SIE merchandise and negotiated and signed a Merchandise License Agreement between the parties in January 2014. The agreement designated Defendant as SIE's primary notice contact and Section 8.1 contained mutual confidentiality provisions requiring both parties to maintain the confidentiality of disclosed information.